> *of that religion itself. If the tenets of any religious sect of the Hindus prescribe that offerings of food should be given to the idol at particular hours of the day, that periodical ceremonies should be performed in a certain way at certain periods of the year or that there should be daily recital of sacred texts or ablations to the sacred fire, all these would be regarded as parts of religion and the mere fact that they involve expenditure of money or employment of priests and servants or the use of marketable commodities would not make them secular activities partaking of a commercial or economic character; all of them are religious practices and should be regarded as matters of religion within the meaning of article 26(b). What article 25(2)(a) contemplates is not regulation by the State of religious practices as such, the freedom of which is guaranteed by the Constitution except when they run counter to public order, health and morality, but regulation of activities which are economic, commercial or political in their character though they are associated with religious practices* [emphases added].

As is evident, the above test was originally formulated to distinguish between the religious and the secular in the context of determining the scope of State powers to regulate the secular aspects of a religious institution under Article 25(2)(a). However, it would ultimately morph in subsequent judgments of the Supreme Court into a test to determine the 'essential aspects' of a religion for the very purpose of the enjoyment of fundamental religious freedoms under Article 25(1). In other words, thenceforth, the State or more often than not, constitutional Courts, would determine what constituted 'essential' aspects of a religion despite professing to be secular bodies with no institutionalised training in the OET of any faith. The irony is compounded by the fact that the religious versus secular divide was conceived of in the Christian faith to limit the scope of State interference in matters of religion, which, in Bharat, has yielded diametrically opposite results particularly with respect to Indic faith systems.

Even if the ERP test may validly be applied to other scripture-based faiths that are closer to the coloniser's faith, the application of such a test to Indic OETs, which are not fully bound by scripture, is to impose the Christian theological framework on indigenous faith systems. The fact that